

# Exhibit 23

UNITED STATES INTERNATIONAL TRADE COMMISSION  
WASHINGTON, D.C.

In the Matter of

**CERTAIN SECONDARY  
CYLINDRICAL BATTERIES,  
COMPONENTS THEREOF, AND  
PRODUCTS CONTAINING THE SAME**

Investigation No. 337-TA- \_\_\_\_\_

**DECLARATION OF SUMIN LEE**

1. I, Sumin Lee, hereby declare as follows:

2. I am employed by LG Energy Solution Arizona, Inc. and LG Energy Solution, Ltd. as Professional and am based in Queen Creek, Arizona. I have held this position for 21 months and have been employed by LG Energy Solution, Ltd. for 17 years and 6 months. Among my responsibilities is tracking actual and forecasted investments relating to LGES's United States battery cell manufacturing operations. I have personal knowledge of the facts stated herein or have been informed of such by knowledgeable personnel.

3. As used in this declaration, "LGES" refers collectively to LG Energy Solution, Ltd. and LG Energy Solution Arizona, Inc. LGES is a leading global manufacturer of lithium-ion batteries for electric vehicles, mobility, information technology, and energy storage systems.

4. LGES is in the process of establishing U.S. manufacturing operations for LGES's lithium-ion batteries that I am informed are protected by the Asserted Patents.<sup>1</sup> Specifically, in March 2023, LGES announced a planned investment of roughly \$5.5 billion for a manufacturing

<sup>1</sup> I am informed that the Asserted Patents are U.S. Patent No. 12,412,965 (the '965 patent'), U.S. Patent No. 12,646,735 (the '735 patent'), U.S. Patent No. 8,420,257 (the '257 patent'), U.S. Patent No. 11,749,866 (the '866 patent'), and U.S. Patent No. 12,412,924 (the '924 patent') (collectively, the "Asserted Patents").



complex in Arizona. This investment marks the largest single investment ever for a stand-alone battery manufacturing complex in North America. The Arizona Complex comprises two separate plants: (i) the Arizona Cylindrical Battery Facility, a cylindrical battery cell plant in which LGES has committed to invest approximately **\$3.2 billion**; and (ii) a separate plant producing lithium iron phosphate pouch-type cells for energy storage systems.

5. Only the Arizona Cylindrical Battery Facility will manufacture the Domestic Industry Products (and solely those products), and the investments described in this declaration relate to that facility. As set forth herein, LGES has made and committed substantial investments in the United States in equipment, real estate, and labor; has already hired and paid more than [REDACTED] employees; and has secured customer supply commitments—all directed toward commencing and continuing mass domestic production of the Domestic Industry Products.

6. I understand that the Domestic Industry Products are LGES's 4695 cylindrical battery cell (the "4695")<sup>2</sup> and LGES's 2170 cylindrical battery cell (the "2170") (collectively, the "Domestic Industry Products" or "DI Products"). Both are cylindrical lithium-ion battery cells that will be manufactured at the Arizona Cylindrical Battery Facility.

7. I understand that the claim charts attached to LGES's Complaint show how one or more of the Domestic Industry Products are protected by one or more claims of the Asserted Patents. I also understand that the chart below identifies which of the respective Domestic Industry Products are protected by each of the Asserted Patents:

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<sup>2</sup> I am informed that the main difference among LGES's 46-series batteries is the height, and that, on information and belief, LGES's other 46-series batteries can therefore be considered Domestic Industry Products for the same reasons as the LGES 4695.

| Patent No.  | DI Products |
|-------------|-------------|
| '965 patent | 4695        |
| '735 patent | 4695 & 2170 |
| '257 patent | 2170        |
| '866 patent | 2170        |
| '924 patent | 4695 & 2170 |

8. LGES broke ground on the Arizona Complex in November 2023, and construction of the Arizona Cylindrical Battery Facility is substantially complete (██████████ complete at the end of May 2026). LGES expects to begin commercial production of the 4695 in November or December of 2026<sup>3</sup>, and of the 2170 in December 2027.

9. LGES tracks, in the ordinary course of business, the investments described below. For purposes of this declaration, LGES's United States investments relating to the Domestic Industry Products fall into three categories: (1) equipment and machinery; (2) building and real estate; and (3) labor.

10. **Equipment and machinery.** Since at least February of 2026, LGES has purchased approximately ██████████ in manufacturing equipment for the Domestic Industry Products at the Arizona Cylindrical Battery Facility. Of that amount, approximately ██████████ is directed to the 4695 (including assembly/formation and electrode-process equipment), a substantial portion of which has already been received and installed on the production line; and approximately ██████████ is directed to the 2170 (including winders, unloaders, inspection, cell assembly, activation, auxiliary, and factory-automation logistics equipment), which has been ordered and is scheduled for installation and site-acceptance testing through early 2027.

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<sup>3</sup> Production of samples is expected to begin in late June or July of 2026.



further demonstrated by the customer supply commitments it has secured for DI Products to be manufactured at the Arizona Cylindrical Battery Facility, including the following:

a.

b.

c.

d.

14. The chart below sets forth LGES's approximate investment attributable to each Asserted Patent, based on the Domestic Industry Product(s) that practice that patent.

| Patent | DI Product  | Equipment | Building & Real Estate | Labor | Total |
|--------|-------------|-----------|------------------------|-------|-------|
| '965   | 4695        |           |                        |       |       |
| '735   | 4695 & 2170 |           |                        |       |       |
| '257   | 2170        |           |                        |       |       |
| '866   | 2170        |           |                        |       |       |
| '924   | 4695 & 2170 |           |                        |       |       |

I, Sumin Lee, declare under penalty of perjury that the foregoing is true and correct.

Dated: 7.16, 2026

  
Sumin Lee  
Professional  
LG Energy Solution Arizona, Inc. / LG Energy  
Solution, Ltd.

